(iii) A statement over the signature of each heir or devisee concerning citizenship and holdings similar to that required by § 193.11 (a) (2) and (3).

(2) Where the executor or administrator has been discharged or no probate proceedings are required:

(i) A certified copy of the will or decree of distribution, if any, and if not, a statement signed by the heirs that they are the only heirs of the permittees and citing the provisions of the law of the deceased's last domicile showing no probate is required.

(ii) A statement over the signature of each of the heirs or devisees with reference to citizenship and holdings similar to that required by § 193.11 (a) (2) and (3), except that if the heir or devisee is a minor, the statement must be over the signature of the guardian or trustee.

(3) Where there is a legal guardian or trustee:

(i) A certified copy of the court order authorizing the guardian or trustee to act as such and to fulfill in behalf of the minor or minors all obligations of the lease or arising thereunder; statements by the guardian or trustee as to the citizenship and holdings of each of the minors and as to his own citizenship and holdings, including his holdings for the benefit of other minors similar to that required by § 193.11 (a) (2) and (3).

6. Paragraph (c) of § 193.25 is amended and new paragraphs (d) and (e) added, as follows:

§ 193.25 *Transfers, including subleases.*

* * * * *

(c) An application for approval of any instrument transferring a lease or permit, or interest therein, must be accompanied by a service fee of $10. An application not accompanied by such a fee will not be accepted. The fee will not be returned even though the application is later withdrawn or rejected.

(d) No transfer will be approved if the transferee is not qualified to take and hold a permit or lease or if his bond is insufficient. A minor, except a minor heir or devisee of a permittee or lessee, is not qualified to hold a permit or lease and a transfer to a minor will not be approved.

(e) In order for the heirs or devisees of a deceased holder of a permit or lease, an operating agreement, or a royalty interest in a permit or lease, to be recognized by the Secretary as the holder of the permit or lease, agreement or interest, there must be furnished the appropriate showing required under § 153.-24 (b).

[F. R. Doc. 56-6963; Filed, Aug. 29, 1956; 8:45 a. m.]

Appendix—Public Land Orders

[Public Land Order 1329]

[1360411]

ALASKA

MODIFYING EXECUTIVE ORDER NO. 5391 OF JULY 8, 1930, WHICH RESERVED CERTAIN PUBLIC LANDS FOR EDUCATIONAL PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 5391 of July 8, 1930, which reserved certain public lands in Alaska for use of the Office of Education, is hereby modified to the extent necessary to permit conveyance of the following tract at Point Hope to the Territory of Alaska under the provisions of the act of May 13, 1946 (60 Stat. 170; 49 U. S. C. 1101):

From a reference point consisting of a 4 in. x 4 in. x 10 ft. wooden stake comprising the northwest corner of property belonging to the Episcopal Mission, proceed N. 43° 43' E. for a distance of 316.36 ft. to the point of beginning comprising the northwest corner to the Point Hope Airport property. From this point proceed N. 78° 29' E. for a distance of 596.34 ft.; thence S. 78° 09' E. for a distance of 507.18 ft.; thence S. 21° 30' W. for a distance of 4,195.00 ft.; thence N. 82° W. for a distance of 1,028.4 ft.; thence N. 21° 30' E. for a distance of 4,025 ft. to the point of beginning.

The area described contains 95.73 acres.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 23, 1956.

[F. R. Doc. 56-6961; Filed, Aug. 29, 1956; 8:45 a. m.]

[Public Land Order 1330]

MICHIGAN

REVOKING EXECUTIVE ORDER OF JUNE 19, 1894 AND PARTIALLY REVOKING EXECUTIVE ORDER OF MARCH 16, 1875, WHICH RESERVED CERTAIN LANDS FOR LIFE-SAVING PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

[70005]

1. The Executive Order of June 19, 1894, reserving the following-described public lands in Michigan for life-saving purposes, is hereby revoked:

MICHIGAN MERIDIAN

T. 29 N., R. 14 W.,
Sec. 18, lot 2.

The area described contains 55.5 acres.

[69373]

2. The Executive order of March 16, 1875, reserving certain lands in Michigan for life-saving purposes, is hereby revoked so far as it affects the following-described lands:

MICHIGAN MERIDIAN

T. 49 N., R. 11 W.,
Sec. 2, lots 1 and 2.

The areas described aggregate 72.65 acres.

3. The released lands are embraced in forest exchange application, BLM 042116, filed by the State of Michigan under the act of July 31, 1912 (37 Stat. 241), by which the offered lands will benefit a Federal land program. This restoration is, therefore, not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

FRED G. AANDAHL,
Acting Secretary of the Interior.

AUGUST 24, 1956.

[F. R. Doc. 56-6962; Filed, Aug. 29, 1956; 8:45 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

Subchapter F—Alaska Commercial Fisheries

PART 107—CHIGNIK AREA

ADDITIONAL FISHING TIME

Basis and purpose. On the basis of good escapements of red salmon in the Chignik Bay district, it has been determined that additional fishing time can be permitted.

Therefore, effective immediately upon publication in the FEDERAL REGISTER, § 107.3 is amended in paragraph (b) by deleting "Friday" and substituting in lieu thereof "Saturday", effective in 1956 only.

Since immediate action is necessary, notice and public procedure on this amendment are impracticable (60 Stat. 237; 5 U. S. C. 1001 et seq.).

(Sec. 1, 43 Stat. 464, as amended; 48 U. S. C. 221)

ROBERT H. JOHNSON,
Acting Director.

AUGUST 29, 1956.

[F. R. Doc. 56-7041; Filed, Aug. 29, 1956; 11:45 a. m.]

PART 122—SOUTHEASTERN ALASKA AREA, CLARENCE STRAIT DISTRICT, SALMON FISHERIES

PART 123—SOUTHEASTERN ALASKA AREA, SOUTH PRINCE OF WALES ISLAND DISTRICT, SALMON FISHERIES

ADDITIONAL FISHING TIME

Basis and purpose. On the basis of continuing good runs of pink salmon in certain districts of Southeastern Alaska, it has been determined that some additional fishing time can be permitted.

Therefore, effective immediately upon publication in the FEDERAL REGISTER:

1. Sections 122.4 and 123.3 are amended in text by deleting "August 28" and substituting in lieu thereof "August 30."

2. Section 122.5a is amended in text by deleting "August 28" and substituting in lieu thereof "August 29."

Since immediate action is necessary, notice and public procedure on this amendment are impracticable (60 Stat. 237; 5 U. S. C. 1001 et seq.).

(Sec. 1, 43 Stat. 464, as amended; 48 U. S. C. 221)

JOHN L. FARLEY,
Director.

AUGUST 28, 1956.

[F. R. Doc. 56-7004; Filed, Aug. 28, 1956; 2:49 p. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Misc. 61572]

CALIFORNIA

ORDER PROVIDING FOR THE OPENING OF PUBLIC LANDS RESTORED FROM YUMA AND COLORADO RIVER STORAGE PROJECT

AUGUST 24, 1956.

An order of the Bureau of Reclamation of April 13, 1951, concurred in by the Acting Director, Bureau of Land Management, May 17, 1951, revoked the Departmental orders of April 2, 1909, February 16, 1918, February 28, 1918, February 11, 1920, October 19, 1920, December 13, 1920, and June 4, 1930, so far as they withdrew under the provisions of the Reclamation Act of June 17, 1902 (32 Stat. 388), the following-described lands in connection with the Yuma and Colorado River Storage Project, California, and provided that such revocation should not affect the withdrawal of any other lands by said orders or affect any other orders withdrawing or reserving the lands described:

SAN BERNARDINO MERIDIAN

T. 8 S., R. 8 E.,
Secs. 22 and 26.
T. 11 S., R. 9 E.,
Secs. 1, 2, 3, 10 to 15, inclusive;
Secs. 22 to 27, inclusive.
T. 12 S., R. 9 E.,
Secs. 1 to 6, inclusive.
T. 7 S., R. 10 E.,
Sec. 8.
T. 11 S., R. 10 E.,
Secs. 1 to 36, inclusive.
T. 7 S., R. 12 E.,
Secs. 1 to 36, inclusive.
T. 9 S., R. 13 E.,
Sec. 24, inclusive.
T. 17 S., R. 11 E.,
Secs. 1 to 36, inclusive.
T. 9 S., R. 14 E.,
Secs. 19 to 22, inclusive.
T. 11 S., R. 15 E.,
Secs. 1 to 4, inclusive;
Secs. 10 to 13, inclusive;
Sec. 24.
T. 11 S., R. 16 E.,
Secs. 1 to 29, inclusive;
Secs. 32 to 36, inclusive.
T. 12 S., R. 16 E.,
Secs. 1, 2, 12, and 13;
Secs. 22 to 26, inclusive;
Sec. 36.
T. 13 S., R. 17 E.,
Secs. 1, 2, and 12.
T. 14 S., R. 18 E.,
Secs. 1, 2, 3, 11, 12, 13, and 24.

The areas described aggregate 130,162.32 acres.

1. The following-described lands are included in applications for withdrawal filed by the Department of the Navy (LA 0106066 and LA 0102641). With respect to these lands, applications under the public-land laws will be suspended in accordance with 43 CFR 295.10 until action on the applications for withdrawal has been taken:

SAN BERNARDINO MERIDIAN

T. 7 S., R. 12 E.,
Sec. 34, SE¼SE¼;
Sec. 35, NE¼SW¼, S½SW¼, and SE¼;
Sec. 36, S½ and S½NE¼.
T. 9 S., R. 13 E.,
Sec. 24.
T. 9 S., R. 14 E.,
Secs. 19 to 22, inclusive.
T. 11 S., R. 15 E.,
Secs. 1, 2, 3, and 12.
T. 11 S., R. 16 E.,
Secs. 1 to 18, inclusive; 20 to 28, inclusive, and 34 to 36, inclusive.
T. 12 S., R. 16 E.,
Secs. 1, 2, and 12.

The areas described aggregate approximately 27,600 acres.

2. Sections 2, 4, 6, 8, 10, 14, 22, 26, 34, T. 11 S., R. 10 E., aggregating approximately 5,760 acres, are included in State exchange application, LA 0106793, filed under the provisions of section 8 of the Taylor Grazing Act of June 28, 1934 (48 Stat. 1272; 43 U. S. C. 315g) as amended, by which the offered lands will benefit a Federal land program. These lands are therefore not subject to the provisions of the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

3. The SW¼, sec. 30, T. 17 S., R. 11 E., is included in allowed Desert Land Entry, LA 039446, and is therefore not subject to the provisions of the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting preference rights to veterans of World War II, the Korean Conflict, and others.

4. The following-described lands are included in other existing withdrawals:

SAN BERNARDINO MERIDIAN

T. 11 S., R. 10 E.,
Secs. 1, 12, 13, and 24.
T. 17 S., R. 11 E.,
Sec. 4, SW¼SW¼;
Sec. 5, S½SE¼ and SE¼SW¼;
Sec. 8, NE¼, E½NW¼, NW¼SW¼, and N½SE¼;
Sec. 9, W½NW¼ and NW¼SW¼;
Secs. 25 to 32, inclusive.
T. 7 S., R. 12 E.,
Secs. 1 to 36, inclusive.

The areas described aggregate approximately 8,320 acres.

5. The remaining lands, aggregating approximately 89,162 acres, are situated in the inland desert region of Southern California. The area comprises lands located in the south-central edge of Riverside County near the Santa Rosa and Orocopia Mountains and in Imperial County. Nearly all of the lands are characterized by rough, irregular, broken or rugged mountain topography. The lands are not valuable for agriculture nor grazing purposes.

6. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

7. Subject to any valid existing rights and the requirements of applicable law, the restored lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the non-mineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on September 29, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on December 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on December 29, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws. They will be open to location under the United States mining laws beginning at 10:00 a. m. on December 29, 1956.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Los Angeles, California.

CHARLES P. MEAD,
Acting Director.

[F. R. Doc. 56-6976; Filed, Aug. 29, 1956; 8:47 a. m.]

[Doc. 139]

[Classification 53]

ARIZONA

SMALL TRACT CLASSIFICATION

AUGUST 22, 1956.

1. Pursuant to authority delegated to me by Document No. 43, Arizona, effective May 19, 1955 (20 F. R. 3514–15), I hereby open the following described lands, which were classified by Classification Order No. 46, Document No. 71, dated November 7, 1955 (20 F. R. 8503), to application for lease and sale for residence and/or business purposes under the Small Tract Act of June 1, 1938 (52 Stat. 609; 43 U. S. C. 682a), as amended:

GILA AND SALT RIVER MERIDIAN

T. 5 N., R. 4 E.,
Sec. 15: W½, SE¼;
Sec. 21: E½, SW¼;
Sec. 22: All;
Sec. 26: S½;
Sec. 27: S½S½;
Sec. 28: N½;
Sec. 35: E½.

aggregating 2,720 acres subdivided into 1,088 small tracts none of which are covered by applications from persons entitled to preference under 43 CFR 257.5 (a).

2. The tracts are situated in Paradise Valley, Maricopa County, approximately 16 miles north of Phoenix, Arizona, and approximately 3½ miles south of Cave Creek, Arizona. The topography is flat to rolling with numerous small shallow washes throughout. Soils are sandy clay loam interspersed with fine gravel. A power line parallels the east line of sections 15, 22, and 27. Culinary water is not available from any presently developed source. Schools, stores, and other public facilities are available in the communities of Sunnyslope and Phoenix. Native vegetation is typical of the Southwestern desert region and consists primarily of creosote, bursage, paloverde, cacti, and mesquite. There is no evidence of metallic or non-metallic minerals.

3. (a) The individual tracts contain 2½ acres and conform to 1/256 of a section. All tracts in the S½S½S½, NE¼SE¼SE¼, E½NE¼SE¼ section 15; N½N½NE¼ section 21; N½N½N½, SE¼NE¼NE¼, E½SE¼NE¼, E½E½SE¼ section 22; W½W½SW¼ section 26; E½SE¼SE¼ section 27, and S½S½SE¼ section 35 are appraised at $375.00 per tract. All remaining tracts are appraised at $300.00 per tract.

(b) The advance three year rental for residence tracts appraised at $375.00 is $56.25. The advance three year rental for those tracts appraised at $300.00 is $45.00. The advance three year rental for a business tract is $60.00. However, if the gross business exceeds $2,000.00 per annum, the rental will be calculated in accordance with the schedule incorporated in the lease.

(c) Rights-of-way 33 feet in width for streets, roads and public utilities will be reserved on all tract boundary lines facing the section lines, quarter, sixteenth and sixty-fourth subdivision lines. All minerals in the lands will be reserved to the United States.

4. Leases will be issued for a term of three years and will contain an option to purchase in accordance with 43 CFR 257.13. Lessees who comply with the general terms and conditions of their leases will be permitted to purchase their tracts at the prices listed above, provided that during the period of their leases they either (a) construct the improvements specified in paragraph 6 or (b) file a copy of an agreement in accordance with 43 CFR 257.13 (d). Leases will be renewable at the discretion of the Bureau of Land Management and the renewal lease will be subject to such terms and conditions as are deemed necessary in the light of the circumstances and the regulations existing at the time of renewal. However, a lease will not be renewable unless failure to construct the required improvements is justified under the circumstances and nonrenewal would work an extreme hardship on the lessee.

5. Persons who have previously acquired a tract under the Small Tract Act are not qualified to secure a tract unless they can make a showing satisfactory to the Bureau of Land Management that the acquisition of another tract is warranted in the circumstances.

6. The improvements referred to in paragraph 4 above must conform with health, sanitation, and construction requirements of local ordinances and must, in addition, meet the following standards. Each living unit should provide complete living facilities, ordinarily considered to be a permanent home, arranged and completed to provide suitable and desirable living, sleeping and cooking accommodations for year round occupancy. Each living unit should contain not less than 500 square feet of floor space and shall be divided into at least two rooms. The homes must be built in a workmanlike manner out of attractive properly finished materials. They must be of substantial construction to withstand the elements and on a full solid foundation. Adequate disposal and sanitary facilities must be installed.

7. (a) Applicants must file, in duplicate, with the Manager, Land Office, Room 251 Main Post Office Building, Phoenix, Arizona, application Form 4–776 filled out in compliance with the instructions on the form and accompanied by any showings or documents required by those instructions. Copies of the application form can be secured from the above-named official.

(b) The applications must be accompanied by a filing fee of $10.00 plus the advance rental as specified in paragraph 3. Failure to transmit these payments with the application will render the application invalid. Advance rentals will be returned to the unsuccessful applicants. All filing fees will be retained by the United States.

8. The lands are now subject to application under the Small Tract Act. All valid applications from persons entitled to veterans' preference filed after August 22, 1956 and prior to 10:00 a. m., September 27, 1956, will be considered as simultaneously filed at that time. All valid applications from persons entitled to veterans' preference filed after that time will be considered in the order of filing. All valid applications from other persons filed after August 22, 1956 and prior to 10:00 a. m. December 27, 1956 will be considered as simultaneously filed at that time. All valid applications filed after that time will be considered in the order of filing.

9. Inquiries concerning these lands shall be addressed to Manager, Land Office, Room 251 Main Post Office Building, Phoenix, Arizona.

E. R. TRACITT,
State Lands and Minerals, Staff Officer.

[F. R. Doc. 56-6964; Filed, Aug. 29, 1956; 8:45 a. m.]

Bureau of Reclamation

COLORADO RIVER STORAGE AND YUMA PROJECTS, CALIFORNIA

ORDER OF REVOCATION

DECEMBER 4, 1953.

Pursuant to the authority delegated by Departmental Order No. 2515 of April 7, 1949 (14 F. R. 1937), I hereby revoke Departmental Orders of April 2, 1909, October 19, 1920, and June 4, 1930, insofar as said orders affect the following described lands; provided, however, that such revocation shall not affect the withdrawal of any other lands by said orders or affect any other orders withdrawing or reserving the land hereinafter described.

SAN BERNARDINO MERIDIAN, CALIFORNIA

T. 7 S., R. 10 E.,
Secs. 7, 15 to 23, inclusive, 25 to 27, inclusive, all;
Sec. 28, N½;
Sec. 29, N½;
Sec. 30, N½ Lot 1 of the NW¼, N½ Lot 2 of the NW¼, NE¼.
T. 7 S., R. 11 E.,
Secs. 27, 28, and 30 to 36, inclusive, all.
T. 8 S., R. 11 E.,
Secs. 1, 2, 6, 12, and 13, all;
Sec. 18, Lots 1 and 2 of the NW¼, E½;
Sec. 20, N½, SE¼;
Sec. 28, NE¼.
T. 9 S., R. 11 E.,
Sec. 14, NE¼;
Sec. 24, NE¼.
T. 8 S., R. 12 E.,
Secs. 5 to 9, inclusive, 16 to 22, inclusive, 24 to 30, inclusive, and 32 to 36, inclusive, all.
T. 9 S., R. 12 E.,
Sec. 1, all;
Sec. 2, Lot 1 of the NE¼, SE¼NE¼NE¼, SW¼NW¼NE¼ (in Lot 2 of NE¼), Lot 1 of NW¼, NW¼NE¼NW¼, S½NE¼NW¼, NW¼NW¼ (in Lot 2 of NW¼), S½;
Secs. 3, 4, and 12, all.
T. 8 S., R. 13 E.,
Sec. 31, all.
T. 9 S., R. 13 E.,
Secs. 7, 8, 16 to 18, inclusive, 20 to 23, inclusive, 25 to 27, inclusive, and 36, all.
T. 9 S., R. 14 E.,
Secs. 23, 31 and 32, all.
T. 10 S., R. 14 E.,
Secs. 3 to 6, inclusive, 8 to 11, inclusive, 14 to 16, inclusive, 22 to 26, inclusive, and 36, all.
T. 10 S., R. 15 E.,
Secs. 31 and 32, all.

The above area aggregates 60,193.87 acres.

H. F. MCPHAIL,
Acting Commissioner.

[660151]

AUGUST 24, 1946.

I concur. The records of the Bureau of Land Management will be noted accordingly.

Of the lands released from withdrawal by this order, approximately 31,200 acres have been patented without a mineral reservation, 7,640 acres are included in an application for withdrawal by the Department of the Navy (LA-0106066), 5,120 acres are State school lands, 2,320 acres are withdrawn by Public Land Order No. 281 for use of the Department of the Navy, and 1,280 acres are included in allowed desert-land entries, and 280 acres are withdrawn for power purposes in Power Site Reserve No. 530. Approximately 19,994 acres are vacant public domain.

No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on September 29, 1956, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on December 29, 1956, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on December 29, 1956, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

b. The restored lands have been open to applications and offers under the mineral-leasing laws. They will be open to location under the United States mining laws beginning at 10:00 a. m. on December 29, 1956.

The lands are in Imperial and Riverside Counties, between the Salton Sea and the Orocopia and Chocolate Mountains. They range from fairly level to rough, broken and mountainous. There are numerous shallow washes throughout the lower reaches of the area.

Applications for the lands in Navy application LA-0106066 will be suspended in accordance with 43 CFR 295.10 until action has been taken on the withdrawal application.

The lands in Power Site Reserve No. 530 will be opened to mining location pursuant to the act of August 11, 1955 (69 Stat. 683; 30 U. S. C. 621) at 10:00 a. m. on September 29, 1956.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Los Angeles, California.

CHARLES P. MEAD,
Acting Director,
Bureau of Land Management.

[F. R. Doc. 56-6977; Filed, Aug. 29, 1956; 8:48 a. m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

AUGUST 27, 1956.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 32556: *Coal—Inner and outer crescent districts in Ohio.* Filed by Louisville and Nashville Railroad Company, for itself and interested rail carriers. Rates on coal, carloads from stations on the Interstate Railroad and Louisville and Nashville Railroad in the inner and outer crescent coal districts described in the schedule listed below to specified points in Ohio on the Erie Railroad Company.

Grounds for relief: Origin rate relations and circuitous routes.

Tariff: Supplement 62 to Agent Spaninger's I. C. C. 1174.

FSA No. 32557: *Aluminum billets, pigs and ingots—Louisiana to Ohio.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on aluminum billets, blooms, ingots, pigs or slabs, carloads from Chalmette and New Orleans, La., to Columbus and Heath, Ohio.

Grounds for relief: Circuitous routes.

Tariff: Supplement 22 to Agent Spaninger's I. C. C. 1509.

FSA No. 32558: *Seeds—Pacific coast to Alabama points.* Filed by W. J. Prueter, Agent, for interested rail carriers. Rates on seeds, carloads from specified points in Pacific coast states to Boylston, Madison Park and Montgomery, Ala.

Grounds for relief: Circuitous routes through higher-rated intermediate destination groups.

Tariff: Supplement 11 to Agent Prueter's I. C. C. 1577.

FSA No. 32559: *Cement—North Paulding, Ohio to Michigan.* Filed by H. R. Hinsch, Agent, for interested rail carriers. Rates on cement, clinker, common, hydraulic, masonry, mortar, natural or portland, carloads from North Paulding, Ohio to points in Michigan in central territory.

Grounds for relief: Short-line distance formula, market competition, and circuitous routes.

Tariff: Supplement 12 to New York Central Railroad Company's tariff I. C. C. 1632.

FSA No. 32560: *Fertilizer solutions—Tuscola, Ill., to Southern Points.* Filed by R. G. Raasch, Agent, for interested rail carriers. Rates on fertilizer ammoniating and nitrogen solutions, tank-car loads from Tuscola, Ill., to Birmingham, Ala., Rome, Ga., Hopkinsville, Ky., Memphis and Mt. Pleasant, Tenn.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariffs: Supplement 15 to Agent Raasch's tariff I. C. C. 855; Supplement 84 to Agent Raasch's tariff I. C. C. 776.

FSA No. 32561: *Wallboard—South to Western Trunkline Territory.* Filed by O. W. South, Jr., Agent, for interested rail carriers. Rates on wallboard, building, wall or insulating, carloads as described in the application, from points in southern territory to points in zones 2, 3 and 4 of western trunkline territory.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 55 to Alternate Agent Marque's tariff I. C. C. 427.

FSA No. 32562: *Minimum rates—Floor Covering Between North and South.* Filed by C. W. Boin, Agent, for interested rail carriers. Rates on linoleum and felt base floor covering, carloads between certain points in official territory and certain points in southern territory.

Grounds for relief: Grouping and circuitous routes.

Tariffs: Supplement 250 to Agent C. W. Boin's I. C. C. A-800; Supplement 334 to Agent H. R. Hinsch's I. C. C. 3636.

FSA No. 32563: *Phosphate rock—Florida to Albany and Cordele, Ga.* Filed by Seaboard Air Line Railroad Company for itself and on behalf of the Albany and Northern Railway Company. Rates on phosphate rock, carloads, as

described in the application from stations on the Seaboard Air Line Railroad in the pebble rock district in Florida to Albany and Cordele, Ga., on the Albany and Northern Railway.

Grounds for relief: Circuitous route.

FSA No. 32564: *Cement—Chicago, Ill., group and Fairborn, Ohio, to Trunk Line Territory.* Filed by H. R. Hinsch, Agent, for interested rail carriers. Rates on cement, common, masonry, mortar, natural, hydraulic or portland, carloads and cement clinker, carloads from Chicago and South Chicago, Ill., Buffington, Ind., and Fairborn, Ohio to District of Columbia and points in Maryland, New Jersey, New York, Pennsylvania, Virginia and West Virginia, within 700 miles of each origin.

Grounds for relief: Short-line distance formula, truck competition and circuitous routes.

Tariff: Supplement 80 to Agent Hinsch's tariff I. C. C. 3826.

FSA No. 32565: *Latex—Naugatuck, Conn., to Spray, N. C.* Filed by O. E. Swenson and C. W. Boin, Agents, for interested rail carriers. Rates on latex (liquid crude rubber) carloads from Naugatuck, Conn., to Spray, N. C.

Grounds for relief: Short-line distance formula and circuitous routes.

Tariff: Supplement 75 to Agent Swenson's tariff I. C. C. 610.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 56-6978; Filed, Aug. 29, 1956; 8:48 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-2815, etc.]

DIRKS BROS. ET AL.

NOTICE OF SEVERANCE AND CONTINUANCE

AUGUST 23, 1956.

In the matters of Dirks Bros. et al., Docket No. G-2815 et al.; Stanolind Oil and Gas Company, Docket No. G-5713.

Notice is hereby given that the application of Stanolind Oil and Gas Company in Docket No. G-5713 in the above consolidated proceedings and scheduled for a hearing on September 18, 1956, at 9:30 a. m., e. d. s. t., is hereby severed therefrom and continued for a hearing at a subsequent date to be set by further notice.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-6967; Filed, Aug. 29, 1956; 8:46 a. m.]

[Docket No. G-4280, etc.]

NATURAL GAS PIPELINE COMPANY OF AMERICA ET AL.

NOTICE OF HEARING

AUGUST 22, 1956.

In the matters of Natural Gas Pipeline Company of America, Docket No. G-4280; Mid-Continent Petroleum Corporation, Docket No. G-4281; Warren Petroleum Corporation, Docket No. G-4282; Oil Drilling, Inc., et al., Docket No. G-4283; Lone Star Gas Company, Docket No. G-8763.

The Commission on July 26, 1956, issued an order in the above-entitled matters reopening said proceedings for the presentation of further evidence and consolidating for hearing to commence at a time and place to be thereafter fixed.

Notice is hereby given that the hearing referred to will commence at 10:00 a. m., e. d. s. t., October 15, 1956, in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-6968; Filed, Aug. 29, 1956; 8:46 a. m.]

[Docket No. G-6534 etc.]

HOLLY SUGAR CORP. ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

Take notice that each of the Applicants listed below has filed an application for a certificate of public convenience and necessity pursuant to section 7 (c) of the Natural Gas Act, authorizing such Applicant to continue to sell natural gas subject to the jurisdiction of the Commission, all as more fully represented in the respective applications which are on file with the Commission and open for public inspection. These matters should be consolidated and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on the date and at the place hereinafter stated, concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) of the Commission's rules of practice and procedure.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) not less than ten days before the date of hearing. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request for waiver is made. Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicants to appear or be represented at the hearing.

The dockets, Applicants and material averments in applications to which reference is made above are as follows:

Docket No.; Name; Gas Field; and Purchaser

G-6534: Holly Sugar Corporation; Worland, Big Horn and Washakie Counties, Wyo.; Montana-Wyoming Gas Pipeline Company and Montana-Dakota Utilities Company.

G-6545; Breckenridge Gasoline Company; Rodessa, Cass County, Tex.; Arkansas-Louisiana Gas Company.

G-6605; Rip C. Underwood and Southland Royalty Company; West Panhandle, Hutchinson County, Tex.; Phillips Petroleum Company.

G-6607; John R. LeBosquet; Hugoton, Stevens County, Kans.; H. M. Gillespie.

G-3247; Ralph A. Johnson and William G. Johnson's Estate; Fairbanks, Harris County, Tex.; Texas-Illinois Natural Gas Pipeline Company.

G-3991; Henshaw Brothers, John Armstrong and O. R. Mitchell; Alice, Jim Wells County, Tex.; Altex Corporation.

G-4327; Mid-County Oil and Gas Company and Alden B. Dow; Longstreet, DeSoto Parish, La.; Arkansas-Louisiana Gas Company.

A public hearing will be held on the 17th day of September 1956, beginning at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in, and the issues presented by the above applications.

[SEAL] LEON M. FUQUAY, *Secretary.*

AUGUST 23, 1956.

[F. R. Doc. 56-6969; Filed, Aug. 29, 1956; 8:46 a. m.]

[Docket No. G-2503 etc.]

TEXAS EASTERN TRANSMISSION CORP. AND TEXAS EASTERN PENN-JERSEY TRANSMISSION CORP.

ORDER FIXING DATE FOR ORAL ARGUMENT

In the matters of Texas Eastern Transmission Corporation, Docket Nos. G-2503, G-9784, G-9785, G-9786; and Texas Eastern Penn-Jersey Transmission Corporation, Docket No. G-9787.

The East Ohio Gas Company, The Peoples Natural Gas Company, New York State Natural Gas Corporation, and Hope Natural Gas Company, of the Consolidated Natural Gas System, on August 17, 1956, filed a request to present oral argument in the above-entitled matters.

The Commission orders:

(A) Oral argument be had before the Commission on September 14, 1956, at 10:00 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved and the issues presented in the above-entitled consolidated proceedings.

(B) Each party to the proceedings desiring to participate in the oral argument shall notify the Secretary of the Commission, on or before September 4, 1956, of such intention and of the amount of time requested for presentation of their argument.

Issued: August 24, 1956.

By the Commission.

[SEAL] LEON FUQUAY, *Secretary.*

[F. R. Doc. 56-6970; Filed, Aug. 29, 1956; 8:46 a. m.]

[Docket No. G-2864 etc.]

RAY LONDON ET AL.

NOTICE OF SEVERANCE AND CONTINUANCE

AUGUST 24, 1956.

In the matters of Ray London and/or D. E. London, et al., Docket No. G-2864 et al.; Stanolind Oil and Gas Company, Docket Nos. G-4066-4068, inclusive, G-4756, G-4874, G-7484, G-7494, G-7499, G-7506, G-7513, G-7517, G-7519, G-7521, G-7523, G-7534.

Notice is hereby given that the applications of Stanolind Oil and Gas Company in Docket Nos. G-4066-G-4068, inclusive, G-4756, G-4874, G-7484, G-7494, G-7499, G-7506, G-7513, G-7517, G-7519, G-7521, G-7523, and G-7534 in the above consolidated proceedings and scheduled for a hearing on September 12, 1956, at 9:30 a. m., e. d. s. t., are hereby severed therefrom and continued for a hearing at a subsequent date to be set by further notice.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-6971; Filed, Aug. 29, 1956; 8:46 a. m.]

[Docket Nos. G-10727, G-10729]

ALDEN E. BRANINE ET AL.

NOTICE OF APPLICATIONS AND DATE OF HEARING

AUGUST 24, 1956.

In the matters of Alden E. Branine, F. G. Holl, C. B. Edwards, and F. A. Roberts, Docket No. G-10727; Skelly Oil Company, Docket No. G-10729.

Each of the above applicants has filed an application for a certificate of public convenience and necessity pursuant to section 7 of the Natural Gas Act, authorizing applicants to render services as hereinafter described, subject to the jurisdiction of the Commission, all as more fully represented in their respective applications which are on file with the Commission and open for public inspection.

Applicants produce and propose to sell natural gas to Northern Natural Gas Company for transportation in interstate commerce for resale from the fields as hereinafter described.

Docket Nos., and Location of Field

G-10727: Various units in the Embry Field and various sections in Edwards County, Kans.

G-10729: Schafer, Watkins, Crawford, and Kingsmill gasoline extraction plants in Hutchinson, Gray and Carson Counties, Tex. (all located within the Panhandle oil and gas fields).

These related matters should be heard on a consolidated record and disposed of as promptly as possible under the applicable rules and regulations and to that end:

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act, and the Commission's rules of practice and procedure, a hearing will be held on September 24, 1956, at 9:30 a. m., e. d. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved in and the issues presented by such applications: *Provided, however,* That the Commission may, after a non-contested hearing, dispose of the proceedings pursuant to the provisions of § 1.30 (c) (1) or (2) of the Commission's rules of practice and procedure. Under the procedure herein provided for, unless otherwise advised it will be unnecessary for applicants to appear or be represented at the hearing.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before September 10, 1956. Failure of any party to appear at and participate in the hearing shall be construed as waiver of and concurrence in omission herein of the intermediate decision procedure in cases where a request therefor is made.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 56-6972; Filed, Aug. 29, 1956; 8:47 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3504]

PHILADELPHIA CO., AND STANDARD GAS AND ELECTRIC CO.

NOTICE OF PROPOSED RENEWAL OF PROMISSORY NOTE

AUGUST 24, 1956.

Notice is hereby given that Standard Gas and Electric Company ("Standard Gas"), a registered holding company and a subsidiary of Standard Shares, Inc., a registered holding company in the process of conversion into an investment company, and Philadelphia Company ("Philadelphia"), a subsidiary of Standard Gas and also a registered holding company, have filed with this Commission a joint application-declaration pursuant to the Public Utility Holding Company Act of 1935 ("act"), designating sections 6 (a), 7, 9 and 10 thereof as applicable to the proposed transaction, which is summarized as follows:

Philadelphia will issue and deliver to Standard Gas a renewal promissory note in replacement of a promissory note in the principal amount of $2,500,000 which will mature on September 10, 1956, and which bears interest at the rate of 3¼ percent per annum, payable monthly. The renewal note, in the same principal amount, will bear interest payable monthly at the prime interest rate prevailing at the date of the new note for short-term commercial bank loans, and will mature September 10, 1957, with the right of the issuer to anticipate at any time the payment of all or any part of the principal thereof.

It is stated that the expenses, if any, in connection with the proposed transaction will be nominal in amount.

Notice is further given that any interested person may, not later than September 7, 1956, at 5:30 p. m., request the Commission in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues, if any, of fact or law proposed to be controverted; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date said application-declaration, as filed or as amended, may be granted and permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under the Act, or the Commission may grant exemption from its rules as provided in Rules U-20 (a) and U-100, or take such other action as it may deem appropriate.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 56-6974; Filed, Aug. 29, 1956; 8:47 a. m.]

[File No. 811-683]

TRI-STATE INVESTMENT CO.

NOTICE OF APPLICATION FOR ORDER DECLARING THAT COMPANY HAS CEASED TO BE AN INVESTMENT COMPANY

AUGUST 24, 1956.

Notice is hereby given that Tri-State Investment Company ("Applicant"), a New Jersey corporation and a closed-end, non-diversified investment company registered as such under the Investment Company Act of 1940 ("act") has filed an application and an amendment thereto pursuant to section 8 (f) of the act for an order declaring that Applicant has ceased to be an investment company under the act.

Applicant filed its Notification of Registration on June 30, 1955. On May 11, 1956, the Secretary of State of New Jersey issued a certificate of dissolution of Applicant upon delivery to him of the written consent of all of Applicant's stockholders. Applicant's assets amounting to $28,973.61 have all been distributed to its stockholders.

Section 8 (f) of the act provides, in part, that whenever the Commission, upon application, finds that a registered investment company has ceased to be an investment company, it shall so declare by order and upon the taking effect of such order the registration of such company shall cease to be in effect.

Notice is further given that any interested person may, not later than September 14, 1956, at 5:30 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request, and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after